

25STCV07953 25STCV07953

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-09-03

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Case Number: 25STCV07953 Hearing Date: September 3, 2026 Dept: 316

BACKGROUND

This case is a lemon law matter.

On October 1, 2025, Plaintiff Matthew LaPrade filed a complaint against Defendant General Motors, LLC. The complaint alleges five causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On March 24, 2026, the Court issued a Minute Order sustaining the demurrer to Plaintiff's fourth and fifth causes of action.

On June 23, 2026, Plaintiff filed a Motion to Stay Proceedings.

On August 21, 2026, Defendant filed an opposition.

No reply has been filed.

TENTATIVE RULING

Plaintiff's Motion to Stay Proceedings is DENIED.

LEGAL STANDARD

“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) Trial judges have inherent powers to manage and fashion procedures to control litigation to ensure the orderly administration of justice. (See Cottle v. Superior Court (1992) 3 Cal.App.4th 1367, 1376-79.)

DISCUSSION

Here, Plaintiff seeks to stay this action pending the Second District Court of Appeal's resolution of Price v. General Motors (B353231, app. pending). According to Plaintiff, this case will decide whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect. (Motion, p. 3:11-14.)

The Court will not stay this action pending the Price appeal. The Price appeal was filed on February 11, 2026. (See Lister Decl., Exh. C.) Given the usual timeline of an appeal, there is not likely to be an appellate decision until well into 2027. The Court finds that it is unreasonable to stay this action for many months pending the outcome of an appeal in a separate case.

Furthermore, Plaintiff will have the ability to appeal if the action is not stayed and the Price appeal comes out contrary to the Court's ruling in this case.

The Court does not find that it is in the interests of justice and judicial efficiency to stay this proceeding.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Stay Proceedings is DENIED.